



ORIGINAL

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2017 FEB 17 PM 1:27

OFFICE OF THE SECRETARY
FEDERAL MARITIME COMMISSION

DOCKET NO.: 17-02



HANGZHOU QIANWANG DRESS CO., LTD.

Yaguan of Hengfan Town, Linan City
Zhejiang China 311307

COMPLAINANT

V.

RDD FREIGHT INTERNATIONAL INC.

168-01 Rockaway Blvd., Suite 200
Jamaica, NY 11434

RESPONDENT

VERIFIED COMPLAINT

VERIFIED COMPLAINT

Complainant, Hangzhou Qianwang Dress Co., Ltd. (“Complainant”) files this Verified Complaint against respondent, RDD Freight International Inc. (“Respondent”), pursuant to the Shipping act of 1984, as amended by the Ocean Shipping Reform Act of 1998 (the “Shipping Act”), 46 U.S.C. §§ 40101, *et seq.* and the Federal Maritime Commission’s (“FMC”) authority under 46 U.S.C. § 41301.

PARTIES

1. Complainant is a corporation organized and existing under the laws of the People’s Republic of China, with its principal place of business at Yaguan of Hengfan Town, Linan City, Zhejiang, China 311307. Complainant manufactures apparel, including hats and gloves, and sells it to retailers in the United States.

2. Respondent is, upon information and belief, a New York corporation with its principal place of business located at 168-01 Rockaway Boulevard, Suite 200, Jamaica, New York, 22434. Respondent is a non-vessel operating common carrier (“NVOCC”) as defined and described in 46 U.S.C. § 40102(16) and 46 C.F.R. § 515.2(k), and is licensed by the FMC under license number 014595.

JURISDICTION

3. The FMC has jurisdiction over this Complaint pursuant to 46 U.S.C. §§ 40301, *et seq.* and 46 U.S.C. § 41102(C), which provides that a common carrier “may not fail to establish, observe and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.”

FACTUAL ALLEGATIONS

4. Complainant manufactures apparel, including hats and gloves, and sells it to retailers in

the United States.

5. Respondent is an NVOCC and international freight forwarder ("FF"), and is licensed by the FMC under license number 014595.

6. Respondent maintains the following surety bonds pursuant to 46 C.F.R. 515.21:

- a. NVOCC bond number 2016020116, issued by American Alternative Insurance Corporation, effective from July 8, 2016 to present; and
- b. FF bond number 2016020115, issued by American Alternative Insurance Corporation, effective from July 8, 2016 to present.

7. As an NVOCC, Respondent is responsible for arranging the transportation of cargo shipped to the United States, including the cargo's release to the consignee after proper formalities have been completed, *i.e.*, after its receipt of the original bill of lading, and such release has been authorized by the shipper.

8. During or about May 2015, Complainant and Respondent entered into an agreement in which Respondent agreed to transport apparel (the "goods") from China to New York for Complainant.

9. In exchange for such transport, Complainant agreed to pay a fee to Respondent.

10. Respondent issued bills of lading for the transport of the goods from Ningbo, China, to New York, USA.

11. On August 25, 2016, Respondent issued Ocean Bill of Lading NBE16081082 (the "First Shipment"). *See Exhibit A.*

12. The First Shipment included 947 cartons of "acrylic knit" gloves and hats, manufactured and sold by the Complainant to S.W.A.K. Kids Inc., a New York corporation with its principal place of business located at 34 West 33rd Street, Suite 402, New York, NY 10001.

13. The value of the apparel included in the First Shipment is \$57,273.48. *See*

Exhibit B.

14. On August 31, 2016, Respondent issued Ocean Bill of Lading NBE16081477 (the “Second Shipment”). *See Exhibit C.*

15. The Second Shipment included 1095 cartons of “acrylic knit” gloves and hats, manufactured and sold by the Complainant to the same customer, S.W.A.K. Kids Inc.

16. The value of the apparel included in the Second Shipment is \$54,137.40. *See Exhibit D.*

17. On September 15, 2016, Respondent issued Ocean Bill of Lading NBE16091121 (the “Third Shipment,” together with the First Shipment and the Second Shipment, the “Shipments at Issue”). *See Exhibit E.*

18. The Third Shipment included 579 cartons of “acrylic knit” gloves and hats, manufactured and sold by the Complainant to the same customer, S.W.A.K. Kids Inc.

19. The value of the apparel included in the Third Shipment is \$22,796.82. *See Exhibit F.*

20. S.W.A.K. Kids Inc. was the consignee designated on the Bills of Lading for the Shipments at Issue.

21. When the Shipments at Issue arrived in New York, Respondent promptly released the goods to the consignee, S.W.A.K. Kids Inc.

22. Respondent neither waited for receipt of the original Bills of Lading, nor obtained Complainant’s consent before releasing the goods from the Shipments at Issue to the consignee, as required by industry practice.

23. In fact, Respondent released the goods before consignee S.W.A.K. Kids. Inc. tendered

payment to Complainant for the relevant goods.

24. Complainant would not have released the goods to consignee before full payment had been received.

25. As of the date of filing, consignee still has not paid Complainant for the goods contained in the Shipments at Issue.

VIOLATIONS

26. Respondent, in releasing the goods to the consignee before it had received the original Bills of Lading and permission from Complainant to release, violated the Shipping Act and its implementing regulations, in particular, 46 U.S.C. § 41102(C), in that it “fail[ed] to establish, observe and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.”

DAMAGES

27. As a direct consequence of Respondent’s violation, Complainant has sustained, and continues to sustain, injuries and damages in the amount of \$134,207.70.

PRAYER FOR RELIEF

28. Complainant requests that Respondent be required to answer the charges made in this Complaint.

29. Complainant further requests that the FMC order Respondent:

- a. to cease and desist from violation of the Shipping act;
- b. to put in place lawful and reasonable practices;
- c. to pay Complainant reparations for the unlawful conduct in the sum of \$134,207.70, with interest and attorney’s fees and any other sum the Commission determines to be proper.

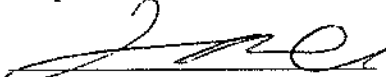
30. Complainant requests that the FMC make any further orders as it determines to be proper.

ALTERNATIVE DISPUTE RESOLUTION

Complainant has not used the FMC's informal dispute resolution procedures prior to the filing of this Complaint, and Complainant has not consulted with the FMC Dispute Resolution Specialist about utilizing alternative dispute resolution.

In the event that denial of this Complaint is contemplated, Complainant requests that such action be deferred and that Complainant be notified and given the opportunity to appear at an oral hearing to be held in New York, New York.

Respectfully submitted,



Lan Ye
Hangzhou Qianwang Dress Co., Ltd.
36-38 Main Street
Flushing, NY 11355
(334) 372-0595
Yelan871222@hotmail.com

VERIFICATION

STATE OF NEW YORK)
COUNTY OF QUEENS) ss:

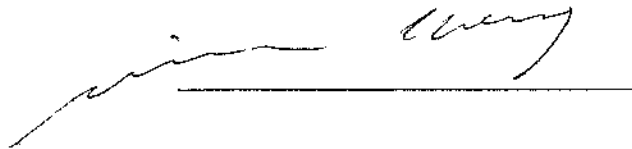
Lan Ye, being duly sworn states:

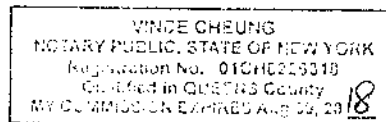
I am the assistant to the manager of the Complainant, Hangzhou Qianwang Dress Co. Ltd., in the action herein. I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.


Lan Ye

Manager's Assistant
Hangzhou Qianwang Dress Co. Ltd.

On the 11th day of February in the year 2017, before me, the undersigned notary public, personally appeared Lan Ye, personally known to me or proved to me on the basis of satisfactory evidence to be the individual whose name is subscribed to the within instrument and acknowledged to me that he/she executed the same in his/her capacity, and that by his/her signature on the instrument, the individual, or the person upon which the individual acted, executed the instrument.






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EXHIBIT A

RDD FREIGHT INTL. INC.

OCEAN BILL OF LADING

SHIPPER (Name and Full Address) HANGZHOU QIANWANG DRESS CO., LTD. YAGUAN OF HENGAN TOWN, LINAN CITY, ZHEJIANG CHINA, 311307. TEL: 571-63772088 FAX: 571-63771189		BOOKING NO. EXPORT REFERENCES LICENSE #14393NF	BL / NBE16081082
CONSIGNEE (Name and Full Address / Non-Negotiable Unless Consignee To Order) SWAK KIDS INC 34 WEST 33RD STREET, SUITE 402 NEW YORK, NY 10001 TEL 212-563-7602 FAX 212-695-0925		FORWARDING AGENT REFERENCES RDD FREIGHT INTERNATIONAL INC. 168-01 ROCKAWAY BLVD., SUITE 200, JAMAICA, NY 11434 U.S.A TEL 718-244-8969 FAX 718-244-8964 IMPORT-NY@RDDFREIGHT.COM	
NOTIFY PARTY (Name and Full Address) SAME AS CONSIGNEE		ALSO NOTIFY (Name and Full Address)	
VESSEL / VOYAGE NO XIN MEI ZHOU/111E		CONTAINER NOS/SEAL NOS	
PLACE OF RECEIPT	PORT OF LOADING NINGBO	FINAL DESTINATION (FOR MERCHANT'S REFERENCE ONLY)	
PORT OF DISCHARGE NEW YORK, NY	PLACE OF DELIVERY NEW YORK, NY	FREIGHT STATUS	NUMBER OF ORIGINAL THREE

PARTICULARS FURNISHED BY SHIPPER

MARKS AND NUMBERS	NO OF PKGS	DESCRIPTION OF PACKAGES AND GOODS	GROSS WEIGHT	MEASURE- MENT
STYLE#: QUANTIT: GROSS WEIGHT: SIZE: MADE IN CHINA YMLU8615089/YMLM749748 40HC	947 CARTONS	ACRYLIC KNIT GLOVE ACRYLIC KNIT HAT SCAC: ELZL ORIGINAL	6869.72KGS	65.31CBM
			LADEN ON BOARD	

MERCHANT'S DECLARED VALUE OF GOODS

If Merchant enters a value, carrier's limitation of liability per consignment shall not apply and ad valorem freight will be charged (See Clause 18 on reverse)

TOTAL NO OF PACKAGES
OR CONTAINERS (IN WORDS)

SAY NINE HUNDRED AND FORTY SEVEN CARTONS ONLY

FREIGHT AND CHARGES FREIGHT PREPAID 1X40HC CY-CY FCL SHIPPER'S LOAD AND COUNT AND SEAL.	PREPAID	COLLECT	Received from the shipper on this side, the goods of packages herein mentioned to be transported to the port of discharge. Terms of this Bill of Lading continued on reverse side hereof. In witness whereof the carrier by its agent has signed the number of original Bills of Lading stated above, All of this tenor and date, one of which being accomplished the others to stand void. Place and date of issue NINGBO AUG 25, 2016 BY  RDD FREIGHT INTERNATIONAL INC. AUTHORIZED SIGNATURE SHANGHAI
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杭州钱王服饰有限公司

HANGZHOU QIANWANG DRESS CO., LTD

Add: YaGuan of HengFan town, LinAn city, China, 311307. Tel:571-63772088 Fax: 571-63771189

致 TO:

SWAK KIDS INC

34 WEST 33RD STREET, SUITE 402

NEW YORK, NY 10001

TEL212-563-7602

装箱单

PACKING

号码

NO..SK04

定单或合约号码

Sales Contract No.

Date: Aug.22.2016

装箱单(重量单)及尺码单 DETAILED PACKING LIST(Weight Memo) & MEASUREMENT LIST

Marks and number	Description of goods	Quantity	Net-w't /Gross-w't or measurement
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PO.: 1).ACRYLIC KNIT GLOVE

STYLE: 2416DZ 996.57KG 1107.3KG

QUAN:

UPC CODE: 2).ACRYLIC KNIT HAT

5276DZ 5186.18KG 5762.42KG

TOTAL:65.31CBM 947CTNS 7692DZ 6182.75KG 6869.72KG

6116990093 化纤针织手套

6505009900 化纤针织帽子

杭州钱王服饰有限公司
HANGZHOU QIANWANG DRESS CO., LTD

周兴良

EXHIBIT B

杭州钱王服饰有限公司

HANGZHOU QIANWANG DRESS CO., LTD

Add: YaGuan of HengFan town, LinAn city, China, 311307. Tel: 571-63772088 Fax: 571-63771189

致 TO:

SWAK KIDS INC

34 WEST 33RD STREET, SUITE 402

NEW YORK, NY 10001

TEL212-563-7602

发 票

INVOICE

号码

NO.SK04

定单或合约号码

Sales Contract No.

Date: Aug.22.2016

FROM NINGBO TO NEW YORK

唛头及号数 Marks & Number	货号, 品名及数量 Style No., Descriptions and Quantities	单价 Unit Price	总价 Amount
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FOB NINGBO

PO.: 1).ACRYLIC KNIT GLOVE

STYLE: 2416DZ

\$1.89

\$4566.24

QUAN:

UPC CODE: 2).ACRYLIC KNIT HAT

5276DZ

\$9.99

\$52707.24

TOTAL:65.31CBM 947CTNS

7692DZ

\$57273.48

6116990093 化纤针织手套

6505009900 化纤针织帽子

杭州钱王服饰有限公司
HANGZHOU QIANWANG DRESS CO., LTD

Handwritten signature

EXHIBIT C

RDD FREIGHT INTL. INC.

OCEAN BILL OF LADING

SHIPPER (Name and Full Address) HANGZHOU QIANWANG DRESS CO., LTD. YAGUAN OF HENGAN TOWN, LINAN CITY, ZHEJIANG CHINA, 311307. TEL:571-63772088 FAX:571-63771189		BOOKING NO. B/L NBE16081477
CONSIGNEE (Name and Full Address / Non-Negotiable Unless Consignee To Order) SWAK KIDS INC 34 WEST 33RD STREET, SUITE 402 NEW YORK, NY 10001 TEL:212-563-7602 FAX:212-695-0925		EXPORT REFERENCES LICENSE #14596NF
NOTIFY PARTY (Name and Full Address) SAME AS CONSIGNEE		FORWARDING AGENT REFERENCES RDD FREIGHT INTERNATIONAL INC. 168-01 ROCKAWAY BLVD., SUITE 200, JAMAICA, NY 11434 U.S.A TEL 718-244-8969 FAX 718-244-8964 IMPORT-NY@RDDFREIGHT.COM
VESSEL / VOYAGE NO YM UNIFORMITY/028E		CONTAINER NO&SEAL NOs
PLACE OF RECEIPT	PORT OF LOADING NINGBO	FINAL DESTINATION (FOR MERCHANT'S REFERENCE ONLY)
PORT OF DISCHARGE NEW YORK, NY	PLACE OF DELIVERY NEW YORK, NY	FREIGHT STATUS
		NUMBER OF ORIGINAL THREE

PARTICULARS FURNISHED BY SHIPPER

MARKS AND NUMBERS	NO OF PKGS	DESCRIPTION OF PACKAGES AND GOODS	GROSS WEIGHT	MEASURE- MENT
STYLE#: QUANTIT: GROSS WEIGHT: SIZE: MADE IN CHINA KKFU7526525/TAF50414 40HC	1095 CARTONS	ACRYLIC KNIT GLOVE ACRYLIC KNIT HAT SCAG:ELZL ORIGINAL	7907.5KGS	64.65CBM
			LADEN ON BOARD	

MERCHANT'S DECLARED VALUE OF GOODS

If Merchant enters a value, carrier's limitation of liability for consignment shall not apply and ad valorem freight will be charged (See Clause 10 on reverse)

TOTAL NO OF PACKAGES:
OR CONTAINERS (IN WORDS)

SAY ONE THOUSAND AND NINETY FIVE CARTONS ONLY

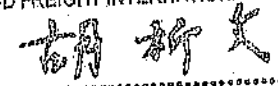
FREIGHT AND CHARGES	PREPAID	COLLECT
FREIGHT COLLECT 1X40HC CY-CY FCL SHIPPER'S LOAD AND COUNT AND SEAL.		

Received from the shipper on this date, the goods of packages herein mentioned to be transported to the port of discharge.

Terms of this Bill of Lading continued on reverse side hereof.

In witness whereof the carrier by its agent has signed the number of original Bills of Lading stated above, All of this (enter and date, one of which being accomplished the others to stand void).

Place and date of issue NINGBO AUG 31, 2016

BY 

RDD FREIGHT INTERNATIONAL INC.
 AUTHORIZED SIGNATURE
 SHANGHAI

杭州钱王服饰有限公司

HANGZHOU QIANWANG DRESS CO., LTD

Add: YaGuan of HengPan town, LinAn city, China, 311307. Tel:571-63772088 Fax: 571-63771189

致 TO:

SWAK KIDS INC

34 WEST 33RD STREET, SUITE 402

NEW YORK, NY 10001

TEL212-563-7602

装箱单

PACKING

号码

NO..SK05

定单或合约号码

Sales Contract No.

Date:Aug.28.2016.

装箱单(重量单)及尺码单 DETAILED PACKING LIST(Weight Memo) & MEASUREMENT LIST

Marks and number	Description of goods	Quantity	Net-w't /Gross-w't or measurement
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PO.:	1).ACRYLIC KNIT GLOVE		
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STYLE:	4566DZ	2043.36KG	2270.40KG
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QUAN:

UPC CODE:	2).ACRYLIC KNIT HAT		
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5046DZ

5073.39KG

5637.10KG

TOTAL:64.65CBM 1095CTNS

9612DZ

7116.75KG

7907.50KG

6116990093 化纤针织手套

6505009900 化纤针织帽子

杭州钱王服饰有限公司
HANGZHOU QIANWANG DRESS CO., LTD

陈兴良

EXHIBIT D

杭州钱王服饰有限公司

HANGZHOU QIANWANG DRESS CO., LTD

Add: YaGuan of HengFan town, LinAn city, China, 311307. Tel: 571-63772088 Fax: 571-63771189

致 TO:
SWAK KIDS INC
34 WEST 33RD STREET, SUITE 402
NEW YORK, NY 10001
TEL212-563-7602

发 票 INVOICE

号码
NO.SK05
定单或合约号码
Sales Contract No.
Date: Aug.28.2016

FROM NINGBO TO NEW YORK

唛头及号数 Marks & Number	货号, 品名及数量 Style No., Descriptions and Quantities	单价 Unit Price	总价 Amount
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FOB NINGBO

PO.:	1).ACRYLIC KNIT GLOVE		
STYLE:	4566DZ	\$1.80	\$8218.80
QUAN:			
UPC CODE:	2).ACRYLIC KNIT HAT		
	5046DZ	\$9.10	\$45918.60

TOTAL: 64.65CBM 1095CTNS 9612DZ \$54137.40

6116990093 化纤针织手套
6505009900 化纤针织帽子

杭州钱王服饰有限公司
HANGZHOU QIANWANG DRESS CO., LTD.

BA 2. 良

EXHIBIT E

RDD FREIGHT INTL. INC.

OCEAN BILL OF LADING

SHIPPER (Name and Full Address) HANGZHOU QIANHANG DRESS CO., LTD. YAGUAN OF HENGFAN TOWN, LINAN CITY. ZHEJIANG CHINA. 311307. TEL: 571-63772088 FAX: 571-63771159		BOOKING NO. 04 NBE16091121	
CONSIGNEE (Name and Full Address / If not Regulated Unless Consigned To Order) SWAK KIDS INC 34 WEST 33RD STREET, SUITE 402 NEW YORK, NY 10001 TEL 212-563-7602 FAX 212-675-0925		CARRIERING AGENT (Name and Full Address) RDD FREIGHT INTERNATIONAL INC. 168-01 ROCKAWAY BLVD., SUITE 200, JAMAICA, NY 11434 U.S.A TEL 718-244-8969 FAX 718-244-8964 IMPORT-NY@RDDFREIGHT.COM	
ORIGIN PARTY (Name and Full Address) SAME AS CONSIGNEE		FREIGHT STATUS THREE	
VESSEL VOYAGE NO. 00800 VIETNAM/025E		EQUIPMENT (How Seal No.)	
PLACE OF RECEIPT NEW YORK, NY	PORT OF DISCHARGE NINGBO	FINAL DESTINATION (FOR MERCHANT'S REFERENCE ONLY)	
PLACE OF DELIVERY NEW YORK, NY		FREIGHT STATUS THREE	

MARK AND NUMBER	NO OF PKGS	DESCRIPTION OF PACKAGES AND GOODS	GROSS WEIGHT	NET WEIGHT
STYLE#: QUANTITY: GROSS WEIGHT, SIZE. MADE IN CHINA	579 CARTONS	ACRYLIC KNIT BLOVE ACRYLIC KNIT HAT	3249.27 KGS	28.89 CBM
THRU 3567175/YULV52926 200P				

SHIPPER'S DECLARED VALUE OF GOODS
 If Merchant enters a value, carrier's liability for loss or damage to cargo is limited to the amount declared (See Clause 10 of charter party)

TOTAL NO OF PACKAGES
 OR CONTAINERS (NUMBER)
 SAY FIVE HUNDRED AND SEVENTY NINE CARTONS ONLY

STANDARD AND CHARGES	PREPARED	COLLECT
FREIGHT COLLECT 1X200P CY-CY FOL SHIPPER'S LOAD AND COUNT AND SEAL		
TOTAL AMOUNT DUE		

Received from the shipper on this date the goods of packages herein registered to be transported to the port of discharge
 Terms of this Bill of Lading confirmed on receipt also noted.
 In witness whereof the carrier, by its agent has signed the number of original bills of lading stated above, all of this tenor and date, one of which being delivered, the others to stand void.
 Place and date of issue NINGBO SEP 15, 2016

BY

RDD FREIGHT INTERNATIONAL INC.

AUTHORIZED SIGNATURE
 SHANGHAI

AS AGENT FOR RDD FREIGHT INTL INC

杭州钱王服饰有限公司

HANGZHOU QIANWANG DRESS CO., LTD

Add: YaGuan of HengFan town, LinAn city, China, 311307. Tel:571-63772088 Fax: 571-63771189

致 TO:

SWAK KIDS INC

34 WEST 33RD STREET, SUITE 402

NEW YORK, NY 10001

TEL212-563-7602

装箱单

PACKING

号码

NO..SK06

定单或合约号码

Sales Contract No.

Date:Feb.13.2016

装箱单(重量单)及尺码单

DETAILED PACKING LIST(Weight Memo) & MEASUREMENT LIST

Marks and number	Description of goods	Quantity	Net-w't /Gross-w't or measurement
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PO.:	1).ACRYLIC KNIT GLOVE		
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STYLE:	4674DZ		
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1585.98KG	1762.2KG
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QUAN:

UPC CODE:	2).ACRYLIC KNIT HAT		
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1674DZ	
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1338.363KG	1487.07KG
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TOTAL:28.89CBM 579CTNS

6348DZ

2924.343KG

3249.27KG

6116990093 化纤针织手套

6505009900 化纤针织帽子

杭州钱王服饰有限公司
HANGZHOU QIANWANG DRESS CO., LTD

陈兴良

EXHIBIT F

杭州钱王服饰有限公司

HANGZHOU QIANWANG DRESS CO., LTD

Add: YaGuan of HengFan town, LinAn city, China, 311307. Tel: 571-63772088 Fax: 571-63771189

致 TO:

SWAK KIDS INC

34 WEST 33RD STREET, SUITE 402

NEW YORK, NY 10001

TEL212-563-7602

发 票

INVOICE

号码

NO.SK06

定单或合约号码

Sales Contract No.

Date: FEB. 13, 2016

FROM NINGBO TO NEW YORK

唛头及号数 Marks & Number	货号, 品名及数量 Style No., Descriptions and Quantities	单价 Unit Price	总价 Amount
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FOB NINGBO

PO.: 1). ACRYLIC KNIT GLOVE

STYLE: 4674DZ

\$1.50 \$7011.00

QUAN:

UPC CODE: 2). ACRYLIC KNIT HAT

1674DZ

\$9.43 \$15785.82

TOTAL: 28.89CBM 579CTNS

6348DZ

\$22796.82

6116990093 化纤针织手套

6505009900 化纤针织帽子

杭州钱王服饰有限公司

HANGZHOU QIANWANG DRESS CO., LTD.

RA 2. 2